

In his dissenting opinion, JUSTICE WHITE confuses "judicial process" in the subpoena sense with a civil damages suit. *Post*, at 778, n. 23. He quotes language from *United States v. Nixon*, *supra*, at 706, as though that language has some relevance to the matter of immunity from civil damages:

"[N]either the doctrine of separation of powers, nor the need for confidentiality . . . without more, can sustain an absolute, unqualified Presidential privilege of immunity from *judicial process* under all circumstances." *Post*, at 782. (Emphasis added.)

First, it is important to remember that the context of that language is a *criminal* prosecution. Second, the "judicial process" referred to was, as in *United States v. Burr*, 25 F. Cas. 30 (No. 14,692d) (CC Va. 1807) (Marshall, C. J., sitting at trial as Circuit Justice), a *subpoena* to the President to produce relevant evidence in a criminal prosecution. No issue of damages immunity was involved either in *Burr* or *United States v. Nixon*. In short, the quoted language has no bearing whatever on a *civil* action for damages. It is one thing to say that a President must produce evidence relevant to a criminal case, as in *Burr* and *United States v. Nixon*, and quite another to say a President can be held for civil damages for dismissing a federal employee. If the dismissal is wrongful the employee can be reinstated with backpay, as was done here. See n. 5, *infra*.

The immunity of a President from civil suits is not simply a doctrine derived from this Court's interpretation of common law or public policy. Absolute immunity for a President for acts within the official duties of the Chief Executive is either to be found in the constitutional separation of powers or it does not exist. The Court today holds that the Constitution mandates such immunity and I agree.

The essential purpose of the separation of powers is to allow for independent functioning of each coequal branch of